

24STCV18864 24STCV18864

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Case Number: 24STCV18864 Hearing Date: August 3, 2026 Dept: 406

KARLA LEIVA,

Plaintiff,

v.

AIDS HEALTHCARE

FOUNDATION,

Defendant.

Case No.: 24STCV18864

Hearing Date: August 3, 2026

[TENTATIVE]

order RE:

defendant's motion to compel production
of unredacted documents (CRS# 4747)

BACKGROUND

On July 26, 2024, Plaintiff Karla

Leiva filed this action against Defendant Aids Healthcare Foundation for
employment discrimination and retaliation. Plaintiff alleges that she was

terminated while on disability leave after protesting and reporting Defendant's
illegal activities, including unsafe or uninhabitable conditions.

On June 16, 2026, Defendant filed the instant motion to compel Plaintiff to produce unredacted versions of two emails. Plaintiff filed an opposition on July 21, 2026. Defendant filed a reply on July 27, 2026.

DISCUSSION

“If a privilege is claimed on the ground that the matter sought to be disclosed is a communication made in confidence in the course of the lawyer-client . . . relationship . . . the communication is presumed to have been made in confidence and the opponent of the claim of privilege has the burden of proof to establish that the communication was not confidential.” (Evid. Code, § 917(a).) “The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise, i.e., a communication made in the course of an attorney-client relationship.” (Citizens for Ceres v. Superior Court (2013) 217 Cal.App.4th 889, 911.) “Once that party establishes facts necessary to support a prima facie claim of privilege, the communication is presumed to have been made in confidence and the opponent of the claim of privilege has the burden of proof to establish the communication was not confidential or that the privilege does not for other reasons apply.” (Ibid.)

This motion concerns documents produced in response to Defendant’s requests for production. (Eisenberg Decl. ¶¶ 4-6.) Plaintiff produced 2,242 pages on April 28, 2026. (Id., ¶ 9.) Within that production, Plaintiff redacted parts of an email chain at pages 044 and 047. (Id., Ex. 7.) On May 20, 2026, Plaintiff served a privilege log indicating that the redacted emails were attorney-client communications between Plaintiff and her former attorney, Annette Morasch (now Annette Harings), relating to legal representation. (Id., Ex. 9.) Plaintiff and Harings further aver in their declarations that the emails were attorney-client communications. (Levia Decl. ¶ 3; Harings Decl. ¶ 5.)

Plaintiff has established the preliminary facts supporting a presumption that the communications are privileged. That is, Plaintiff has established that the redactions contain “communication[s] made in the course of an attorney-client relationship.” (See Citizens for Ceres, supra, 217 Cal.App.4th at p. 911.) Thus, the burden shifts to Defendant to demonstrate that the communications are not privileged. (Ibid.) Defendant

argues that the emails are not privileged under *Holmes v. Petrovich Development Co., LLC* (2011) 191 Cal.App.4th 1047. In *Holmes*, the court held that section 917(b) did not protect attorney-client communications where the plaintiff “us[ed] the company's computer to communicate with her lawyer, knowing the communications violated company computer policy and could be discovered by her employer due to company monitoring of e-mail usage.” (Id. at p. 1051.)

According to Defendant, Plaintiff forwarded work emails to her personal lawyer, Harings. (Mtn. 3:13-14.) The underlying emails have not been redacted. (Eisenberg Decl., Ex. 7.) Only the portions where Plaintiff apparently forwarded the emails to Harings have been redacted. (Ibid.) Defendant contends that “[t]he forwarding naturally most likely would have been done from Leiva’s AHF email account.” (Mtn. at 3:14-15.) However, this is mere speculation. Defendant acknowledges that the forwarding could also have been done from a personal account and admits that it “cannot know for sure.” (Mtn. at p. 3, fn. 2.) Defendant has no evidence that the emails were sent from Plaintiff’s work computer or work email.

Holmes is distinguishable because the issue in that case was the employer’s introduction of emails that it had already discovered on its own computers or servers. (*Holmes*, supra, 191 Cal.App.4th at pp. 1051-52.) The employer had access to the emails because its policy stated that emails sent on its systems were not private and could be monitored. (Ibid.) Here, by contrast, Defendant is moving to compel Plaintiff to produce documents in her possession. If the emails were sent from Defendant’s internal systems, as in *Holmes*, Defendant would already possess them, because it has a similar access policy. (See Eisenberg Decl., Ex. 1, 4.) Instead, Defendant cannot verify emails purportedly sent from its own system and even admits that Plaintiff may have used a personal email. This cuts against Defendant’s contention that the emails were sent from its servers or computers. *Holmes* does not permit production of presumptively privileged material based on this kind of speculation.

Defendant also argues that “[g]iven Leiva’s extreme hostility toward AHF and desire to see AHF harmed, it seems more likely that Leiva was secretly helping AHF’s adversaries in litigation, rather than communicating with lawyers on Leiva’s own legal matter.” (Mtn. at 4:8-11.) This is further speculation. Plaintiff provided a privilege log, and

both Plaintiff and Harings unequivocally aver under oath that the emails were attorney-client communications. Defendant provides no evidence to the contrary other than its subjective "suspicion." (See Mtn. at pp. 3-4.)

In sum, Defendant has not met its burden of showing that the challenged materials are not privileged.

CONCLUSION

Defendant's motion to compel production of unredacted documents is DENIED. Sanctions are denied as the parties acted with substantial justification.